



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 22, 2021

Re: CCRB Case No. 202003969 regarding Sergeant Robert Wong, Tax No. 948442

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 20, 2021, and considered the issues you raised concerning the CCRB case involving Sergeant Wong. Additionally, the Police Commissioner has reviewed the available video evidence showing the moments immediately preceding Sergeant Wong's deployment of the Oleoresin Capsicum Pepper Spray.

Notwithstanding the concerns expressed in your response letter, and based on his review of the available video evidence, the Police Commissioner maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Wong, for the reasons expressed in my December 17, 2021 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and will direct that Sergeant Robert Wong receive no disciplinary action in connection with this matter.

If you have any questions, please feel free to contact me at 646-610-8526.

Yours truly,

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office